

THE STATE OF NEW HAMPSHIRE
JUDICIAL BRANCH
http://www.courts.state.nh.us

Court Name: _____
Case Name: _____
Case Number: _____ Charge ID: _____
(if known)

PETITION OF ELIGIBILITY FOR ANNULMENT OF RECORD OF ARREST OR
CONVICTION FOR PERSONAL POSSESSION OF MARIJUANA (3/4 oz. or less)
OFFENSE OCCURRING PRIOR TO SEPTEMBER 16, 2017

PLEASE COMPLETE A SEPARATE FORM FOR EACH OFFENSE

APPLICANT'S INFORMATION			
Full Name:		Date of Birth:	
Address:			
City/Town	State	Zip Code	Telephone Number:
E-mail Address: (optional)			

CHARGE INFORMATION		
RSA/Statute:	Charge: Possession of ¾ ounce or less of marijuana	
☐ Arrest no conviction		
Offense Date:	Date of Conviction:	Charge Degree at Conviction:
Description of Sentence and Date Sentence Completed:		

THE STATE OF NEW HAMPSHIRE
JUDICIAL BRANCH
http://www.courts.state.nh.us

Court Name: _____
Case Name: _____
Case Number: 2023CR004182 Charge ID: _____
(if known)

PETITION OF ELIGIBILITY FOR ANNULMENT OF RECORD OF ARREST OR
CONVICTION FOR PERSONAL POSSESSION OF MARIJUANA (3/4 oz. or less)
OFFENSE OCCURRING PRIOR TO SEPTEMBER 16, 2017

PLEASE COMPLETE A SEPARATE FORM FOR EACH OFFENSE

APPLICANT'S INFORMATION			
Full Name: Marion T. Ellsworth		Date of Birth: 1988-04-17	
Address: 418 Sycamore Ridge Road			
City/Town	State	Zip Code 03301	Telephone Number:
E-mail Address: (optional) marion.ellsworth@example.com			

CHARGE INFORMATION		
RSA/Statute:	Charge: Possession of ¾ ounce or less of marijuana	
☐ Arrest no conviction		
Offense Date:	Date of Conviction:	Charge Degree at Conviction:
Description of Sentence and Date Sentence Completed:		

Case Name: _____
Case Number: _____
PETITION OF ELIGIBILITY FOR ANNULMENT OF RECORD OF ARREST OR CONVICTION

I swear or affirm, under penalties of law, that the above facts are true and correct to the best of my knowledge and the amount of marijuana alleged to be or in my possession at the time of this charge was ¾ ounce or less.

Date	Applicant's Signature
	Name of Counsel
	Counsel's Signature
	Address
	Address

COURT COMPLETES:
Date sent to Prosecutor: _____ Sent by (initials): _____
Name of Prosecutor: _____

NOTICE TO PETITIONER

The Prosecutor may object to this petition within 10 days of receiving a copy and may request a hearing. If an objection is received from the prosecutor within 10 days the court will schedule a hearing. At the hearing the prosecutor will be required to establish beyond a reasonable doubt that the petitioner knowingly or purposely obtained, purchased, transported, or possessed, actually or constructively, or had under his or her control, marijuana in an amount exceeding ¾ of an ounce.

IT IS ORDERED AND CERTIFIED:

CERTIFICATE OF ANNULMENT	
☐ That the of arrest and or the record of conviction and sentence in the above entitled case, together with any record of arrest or charge therein, is hereby annulled. The applicant has shown that issuance of this order is warranted under the statute.	
☐ The Court DENIES the applicant's petition for the following reason(s): _____ _____	
Date	Signature of Judge
	Printed Name of Judge

CC: ☐ Prosecutor	☐ Defendant
☐ Defense Attorney	☐ Dept. of Safety – Criminal Records
☐ DMV	☐ Dept. of Corrections
☐ _____ Police Department	☐ Other _____
☐ Attorney General	☐ _____ District Division #
☐ Sentence Review	

Case Name: _____
Case Number: 2023CR004182
PETITION OF ELIGIBILITY FOR ANNULMENT OF RECORD OF ARREST OR CONVICTION

I swear or affirm, under penalties of law, that the above facts are true and correct to the best of my knowledge and the amount of marijuana alleged to be or in my possession at the time of this charge was ¾ ounce or less.

Date	Applicant's Signature
	Name of Counsel
	Counsel's Signature
	Address
	Address

COURT COMPLETES:
Date sent to Prosecutor: _____ Sent by (initials): _____
Name of Prosecutor: _____

NOTICE TO PETITIONER

The Prosecutor may object to this petition within 10 days of receiving a copy and may request a hearing. If an objection is received from the prosecutor within 10 days the court will schedule a hearing. At the hearing the prosecutor will be required to establish beyond a reasonable doubt that the petitioner knowingly or purposely obtained, purchased, transported, or possessed, actually or constructively, or had under his or her control, marijuana in an amount exceeding ¾ of an ounce.

IT IS ORDERED AND CERTIFIED:

CERTIFICATE OF ANNULMENT	
☐ That the of arrest and or the record of conviction and sentence in the above entitled case, together with any record of arrest or charge therein, is hereby annulled. The applicant has shown that issuance of this order is warranted under the statute.	
☐ The Court DENIES the applicant's petition for the following reason(s): _____ _____	
Date	Signature of Judge
	Printed Name of Judge

CC: ☐ Prosecutor	☐ Defendant
☐ Defense Attorney	☐ Dept. of Safety – Criminal Records
☐ DMV	☐ Dept. of Corrections
☐ _____ Police Department	☐ Other _____
☐ Attorney General	☐ _____ District Division #
☐ Sentence Review	